



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRM-M-33657-2026

Date of Decision.:12.06.2026

Gurpreet Singh @ Soni

.....Petitioner

Vs.

State of Punjab

.....Respondent

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

**Present:- Mr. Zorawar S. Chauhan, Advocate
for the petitioner.**

DEEPAK GUPTA, J. (ORAL)

The petitioner has approached this Court under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023 seeking anticipatory bail in case FIR No.16 dated 16.01.2026 registered under Sections 420 and 120-B IPC at Police Station Bhikhi, District Mansa.

2. Learned counsel for the petitioner contends that the dispute is essentially of a civil nature arising out of business transactions between the parties. It is submitted that no amount was received by the petitioner personally; that there existed regular monetary dealings between the parties; that a settlement had also been arrived at; and that nothing remains to be recovered from the petitioner. It is further argued that the petitioner is ready and willing to join investigation and, therefore, custodial interrogation is not warranted.

3. Notice of motion.

4. Mr. Ravneet Singh Joshi, DAG, Punjab accepts notice on behalf

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of respondent- State and Mr. J.K. Singla, Advocate put in appearance on behalf of the complainant and filed his power of attorney.

5. *Per contra*, learned State counsel, assisted by learned counsel appearing for the complainant, opposes the petition. It is submitted that the petitioner, in conspiracy with co-accused, induced the complainant to pay a huge amount on the false promise of sending his daughter abroad and thereafter supplied forged and fabricated documents including educational offer letters and visa-related documents. It is further argued that custodial interrogation is necessary to ascertain the manner in which the fraud was committed, the role of other persons involved and the trail of the money allegedly collected from the complainant and other victims.

6. I have heard learned counsel for the parties and have gone through the record.

7. As per the allegations in the FIR, the petitioner and his wife represented themselves as immigration consultants and induced the complainant to pay an amount of ₹24,96,300/- for sending his daughter to Canada. It is alleged that despite receiving the amount, the petitioner failed to arrange the promised visa and repeatedly supplied forged and fabricated documents to maintain the deception. The complainant further alleges that even a purported visa sent through WhatsApp was subsequently found to be fake.

8. At the stage of consideration of anticipatory bail, this Court is not required to undertake a meticulous examination of the evidence. The allegations disclose a prima facie case involving systematic cheating and deception extending over a considerable period of time. The accusations are not confined merely to non-performance of a contractual obligation but include allegations of inducement, fabrication of documents and use of



forged documents to extract money from the complainant.

9. The Supreme Court in ***State represented by the CBI v. Anil Sharma, (1997) 7 SCC 187***, has held that custodial interrogation is qualitatively more elicitation-oriented than questioning a suspect protected by a pre-arrest bail order. Similarly, in ***P. Chidambaram v. Directorate of Enforcement, (2019) 9 SCC 24***, it has been observed that economic offences constitute a distinct class and are required to be viewed seriously, having regard to their impact upon society and the economy.

10. The power to grant anticipatory bail is an extraordinary remedy and is to be exercised sparingly, particularly where serious allegations of cheating involving substantial amounts of money and a larger modus operandi are under investigation. In the present case, the investigation is at a crucial stage. The prosecution has specifically asserted that custodial interrogation of the petitioner is required to trace the money trail, identify the role of other persons involved and recover relevant material connected with the alleged fraud. This Court finds no reason to discard such requirement at this stage.

11. The contention that the matter is purely civil in nature also does not merit acceptance. Mere existence of a monetary transaction or a claim for refund of money would not by itself exclude criminal liability where the allegations disclose dishonest inducement from the inception and the use of allegedly forged documents to perpetuate the deception.

12. This Court also cannot ignore the fact that the prosecution has brought on record the existence of other criminal cases involving similar allegations against the petitioner. Though such cases are not to be treated as proof of guilt, they are relevant circumstances while considering the discretionary relief of anticipatory bail.



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13. Having regard to the nature and gravity of the accusations, the amount allegedly involved, the allegations regarding use of forged documents, the requirement of custodial interrogation and the stage of investigation, this Court is of the considered opinion that the petitioner has failed to make out a case for grant of anticipatory bail.

14. Consequently, the present petition is dismissed.

15. However, anything observed herein shall not be construed as an expression on the merits of the case and shall not prejudice either side during trial.

(DEEPAK GUPTA)
JUDGE

June 12, 2024
Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No